

Chief Justice's Court

Case :- WRIT - C No. - 36355 of 2014

Petitioner :- Pradeep Kumar

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Vijay Kumar Rai, Arvind Kumar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice

Hon'ble Dilip Gupta, J.

Issue notice to the fifth respondent returnable on 31 July 2014. Private service permitted in addition. The petitioner shall file an affidavit of service. In the meantime we direct the respondent Nos.2,3 and 4 to file their counter affidavit.

List as fresh on 31 July 2014.

Order Date :- 17.7.2014

NSC

(Dr. D.Y. Chandrachud, C.J.)

(Dilip Gupta, J.)

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The office report indicates that the service on the fifth respondent is still not complete. Hence, list this petition on 14 August 2014 as fresh. Office to submit a fresh report of service.

Order Date :- 31.7.2014

GS

(Dr. D.Y. Chandrachud, C.J.)

(Dilip Gupta, J.)

Chief Justice's Court

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Hon'ble Dilip Gupta, J.

Office to put up a service report.

List the petition on 21 August 2014 as fresh.

Order Date :- 14.8.2014

AHA

(Dr. D.Y. Chandrachud, C.J.)

(Dilip Gupta, J.)

Chief Justice's Court

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The petitioner has moved these proceedings under Article 226 of the Constitution on the basis that he is a tenant of House No.334, Ward No.9, Sindhi Mill Colony, Tappa, Deoria. The fifth respondent is a landlord of the premises.

According to the petitioner, the landlord attempted to dispossess the petitioner and his family and disconnected the electric supply on 21 September 2013. The petitioner has filed a suit before the Civil Judge (Junior Division), Deoria (Suit No.1988 of 2013). No proceeding has been initiated by the fifth respondent for eviction.

Be that as it may, the grievance is that the petitioner is not being supplied with electricity despite the provisions of Section 43 of the Electricity Act, 2003. Section 43 provides as follows:

“43. Duty to supply on request. – (1) Save as otherwise provided in this Act, every distribution licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application requiring such supply:

Provided that where such supply requires extension of distribution mains, or commissioning of new sub-stations, the distribution licensee shall supply the electricity to such premises immediately after such

extension or commissioning or within such period as may be specified by the Appropriate Commission.

Provided further that in case of a village or hamlet or area whereas no provision for supply of electricity exists, the Appropriate Commission may extend the said period as it may consider necessary for electrification of such village or hamlet or area.”

The petitioner has submitted that under clause 4.4 (vi) of the U.P. Electricity Supply Code, 2005, consent of the owner is required for obtaining a new electricity connection. Based on this provision, it has been submitted that electric supply may not be granted by the third respondent, which according to the petitioner would be contrary to the mandate of Section 43 of the Act, 2003.

Learned counsel appearing on behalf of the second, third and fourth respondents has placed reliance on Annexure 4.2 (under referring clause 4.4) of the Code, 2005. Annexure 4.2 contemplates a situation where an applicant for an electricity connection has to furnish an indemnity bond if the intending consumer is not the owner of the premises. In such a situation, where the consent of the owner is not obtained, the intending consumer is required to produce proof of occupancy and to furnish an indemnity bond to the supplier of electricity, namely the licensee.

In view of these provisions, we had directed the issuance of notice to the fifth respondent by an order dated 17 July 2014 and had permitted private service in addition. An affidavit of service has been filed by the petitioner stating that the landlord has refused to accept the service. The Registry had also issued notice under Registered Post on 24 July 2014. The office has reported that the postal packet has not been returned back.

Having due regard to the provisions of Annexure 4.2 of the Code, 2005, the interest of the petitioner would be sufficiently protected by requiring him

to file an indemnity bond, as stated on behalf of the second, third and fourth respondents. We, accordingly, record the statement of the second, third and fourth respondent and direct that the necessary steps be taken in accordance with law, expeditiously. However, we expressly clarify that by these proceedings, this Court should not be construed to have expressed any opinion on the merits of the controversy, if any, between the petitioner and the fifth respondent, which shall be resolved by the appropriate Court independently, in accordance with law.

The petition is, accordingly, disposed of. There shall be no order as to costs.

Order Date :- 26.8.2014

RKK/-

(Dilip Gupta, J)

(Dr. D.Y. Chandrachud, CJ)